

Court No. - 37

Case :- WRIT - C No. - 7223 of 2014

Petitioner :- M/S Wadilal Industries Ltd. Thru' Auth. Sign. Dinesh Singh

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Shivam Yadav, A.N. Singh

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Sri Baleshwar Chaturvedi, learned counsel for the respondents no. 1 and 2 and Sri A.N. Singh for the respondent no. 3.

By means of this writ petition, the petitioners have prayed for quashing the demand notice for Nov 2013 issued by the respondent No. 2. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioners submit that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the respondents submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioners.

Order Date :- 6.2.2014

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)

Court No. - 39

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Sign. Dinesh Singh**

**Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd.
& 2 Others**

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Shivam Yadav, A.N. Singh

Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

It is pointed out by the learned counsel for the petitioner that the controversy involved in this petition has since been decided by a Division Bench of this Court in Writ-C No.30898 of 2016 (**M/s Dev Prayag Paper Mill(Pvt) Vs. State of U.P and others** on 21 March 2017 and therefore, this petition deserves to be dismissed for the reasons contained in the aforesaid judgement.

It is also pointed out by the learned counsel for the petitioner that the below mentioned 74 writ petitions also involve the same controversy and therefore, they may also be listed. The number of these writ petitions are as follows:

1. Writ Petition No.61730 of 2006.
2. Writ Petition No. 28502 of 2006.
3. Writ Petition No. 41158 of 2007.
4. Writ Petition No.28791 of 2007.
5. Writ Petition No. 1541 of 2006.
6. Writ Petition No.27783 of 2007.
7. Writ Petition No.35587 of 2007
8. Writ Petition No. 28788 of 2007
9. Writ Petition No.36234 of 2007
10. Writ Petition No.24311 of 2007
11. Writ Petition No.36226 of 2007
12. Writ Petition No.41108 of 2007
13. Writ Petition No.11159 of 2007
14. Writ Petition No.24314 of 2007
15. Writ Petition No.41159 of 2007
16. Writ Petition No.48916 of 2007

17. Writ Petition No.40680 of 2007
18. Writ Petition No.40698 of 2007
19. Writ Petition No.27245 of 2007
20. Writ Petition No. 31767 of 2007
21. Writ Petition No.61780 of 2008
22. Writ Petition No.67040 of 2008
23. Writ Petition No.48002 of 2008
24. Writ Petition No.44763 of 2008
25. writ Petition No.40351 of 2008
26. Writ Petition No.21711 of 2008
27. Writ Petition No.28836 of 2008
28. Writ Petition No.28835 of 2008
29. Writ Petition No.49651 of 2009
30. Writ Petition No. 9670 of 2009
31. Writ Petition No. 49642 of 2009
32. Writ Petition No. 55892 of 2009
33. Writ Petition No. 64540 of 2009
34. Writ Petition No. 7334 of 2010
35. Writ Petition No. 40316 of 2010
36. Writ Petition No. 61385 of 2010
37. Writ Petition No. 26237 of 2010
38. Writ Petition No. 63231 of 2010
39. Writ Petition No. 63229 of 2010
40. Writ Petition No. 30800 of 2010
41. Writ Petition No. 18541 of 2010.
42. Writ Petition No. 18539 of 2010
43. Writ Petition No.43357 of 2010
44. Writ Petition No. 63226 of 2010
45. Writ Petition No. 25785 of 2011
46. Writ Petition No. 34951 of 2011
47. Writ Petition No.28995 of 2011
48. Writ Petition No.28998 of 2011
49. Writ Petition No. 27893 of 2011
50. Writ Petition No. 36426 of 2011
51. Writ Petition No. 43266 of 2011
52. Writ Petition No. 32547 of 2011
53. Writ Petition No. 52522 of 2011
54. Writ Petition No. 30823 of 2011

55. Writ Petition No. 30816 of 2011
56. Writ Petition No. 28994 of 2011
57. Writ Petition No. 29875 of 2012
58. Writ Petition No. 38399 of 2012
59. Writ Petition No. 39910 of 2012.
60. Writ Petition No. 45327 of 2013
61. Writ Petition No. 48091 of 2013.
62. Writ Petition No. 35021 of 2013
63. Writ Petition No. 36837 of 2013
64. Writ Petition No. 69599 of 2013
65. Writ Petition No. 66301 of 2013
66. Writ Petition No. 7964 of 2013
67. Writ Petition No. 35008 of 2013
68. Writ Petition No. 15571 of 2014
69. Writ Petition No. 2163 of 2014
70. Writ Petition No. 34278 of 2014
71. Writ Petition No. 46194 of 2014
72. Writ Petition No. 9934 of 2014
73. Writ Petition No. 29566 of 2014
74. Writ Petition No. 32175 of 2015.

Since the aforesaid writ petitions are of different years, office may place the matter before Hon'ble the Chief Justice for nomination of a Bench to hear and decide all these matters.

Order Date :- 6.10.2017
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(Dilip Gupta, J)

(Jayant Banerji, J)

Court No. - 3

Case :- WRIT - C No. - 7223 of 2014

Petitioner :- M/S Wadilal Industries Ltd. Thru Auth. Sign. Dinesh Singh

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh

Hon'ble Shekhar B. Saraf,J.

Hon'ble Prashant Kumar,J.

Heard learned counsel appearing on behalf of the parties.

This petition has been filed for quashing the demand notice requiring the petitioner to pay additional security.

It is pointed out by learned counsel for the parties that the issues raised in this petition have been decided against the petitioner in Writ-C No.30898 of 2016 (**M/s Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & Ors.**) by judgment and order dated 21 March, 2017 whereby this Court has dismissed the writ petition after coming to the conclusion that the demand of additional security by the distribution licensee is not bad.

For all the reasons stated in the aforesaid judgment, this petition stands dismissed.

Order Date :- 4.8.2025

Rakesh

(Prashant Kumar J.) (Shekhar B. Saraf, J.)